



LIMITED-TIME SALE \$0.49/WEEK

OPINION

Can a trial be fair if the judge uses AI?

ROBERT DIAB

CONTRIBUTED TO THE GLOBE AND MAIL

PUBLISHED MARCH 30, 2026



A police officer carries paperwork into the Palais de Justice, Quebec Superior Court, in Montreal in August, 2025.

Listen to this article

[Learn more](#) about audio

[Log in](#) or [create a free account](#) to listen to this article.

Robert Diab is a law professor at Thompson Rivers University.

Canada may have its first case involving a judge who relied on artificial intelligence to write a decision.

The issue has surfaced in a complex commercial fraud case in Quebec Superior Court that resulted in a judgment of more than \$120-million. The defendants have appealed, alleging that the ruling contains hallmarks of AI use, including citations to earlier cases that do not exist and verbatim quotations from testimony that was never given.

The allegation that Justice Jocelyn Geoffroy used AI has not been confirmed, and he has declined to comment. But as La Presse, which broke the story, reported, the fake cases cited in the decision cannot be found in any of the parties' submissions.

While this may be the first Canadian appeal involving a judge's use of AI, it likely won't be the last.

The larger question is whether a judge's reliance on AI renders a trial unfair. The stakes are high. If AI impairs a judge's ability to be fair and impartial – or appear to be so – using it will erode trust in the courts. But does that mean courts have to forego the potential benefits of AI altogether?

The Quebec case helps clarify the limits of acceptable AI use by judges.

Robert Diab: AI writing just isn't good enough – and if you're using it, everyone can already tell

Related stories

At Cannes, Hollywood's war against AI is over – and the robots won



Montreal author defends her writing as human after AI detector flagged prizewinning story



The Class of 2026 rains boos down on AI

MARSHA LEDERMAN

[Terms & Conditions](#)

[Community Guidelines](#)

[Privacy Policy](#)

[Disclaimer](#)

[Subscribe](#)

[Business services](#)

[Contact us](#)

[Reader services](#)

[About us](#)



© Copyright 2026 The Globe and Mail Inc. All rights reserved.

351 King Street East, Suite 1600, Toronto, ON Canada, M5A 0N1

Andrew Saunders, President and CEO